

#	Case Name	Tentative
54	Doe vs. Dillon 22-01270433	1-4. Demurrer to Complaint 5. Motion to Strike Defendant Ralph Dillon’s demurrer is SUSTAINED with leave to amend as to all six causes of action on statute-of-limitations grounds. The Court GRANTS Dillon’s request for judicial notice of Exhibits 1 and 2, consisting of records filed in Ralph Dillon v. Global Financial Data Incorporated, Orange County Superior Court Case No. 30-2014-00738954-CU-OE-CJC. (Evid. Code, § 452, subd. (d).) Defendants Carrie Weeks, Pierre Gendreau, and Lindsay Amendola’s demurrer is SUSTAINED with leave to amend as to all six causes of action on statute-of-limitations grounds. Defendant Kevin Harty’s demurrer is SUSTAINED with leave to amend as to all six causes of action on statute-of-limitations grounds. Defendant Kevin Harty’s motion to strike is DEEMED MOOT in light of the ruling sustaining the demurrer to the entire Complaint with leave to amend. Defendant Kevin Iwanaga’s demurrer is SUSTAINED with leave to amend as to all six causes of action on statute-of-limitations grounds. DEFENDANT DILLON’S DEMURRER Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (See <i>Saliter v. Pierce Brothers Mortuaries</i> (1978) 81 Cal.App.3d 292, 300.) The running of the statute must appear “clearly and affirmatively” from the face of the complaint. It is not enough that the complaint might be time-barred. (<i>Committee for Green Foothills v. Santa Clara County Bd. of Supervisors</i> (2010) 48 Cal.4th 32, 42.) If the complaint alleges facts establishing a defense to the claim, plaintiff must “plead around” that defense (e.g., allege facts showing defendant is estopped from raising a statute of limitations defense). (See <i>Czajkowski v. Haskell & White, LLP</i> (2012) 208 Cal.App.4th 166, 174-175.) Where plaintiff relies on the “discovery rule” to avoid a statute of limitations defense, the complaint must specifically plead facts that show (i) the time and manner of discovery, and (ii) plaintiff’s inability to have made an earlier discovery despite reasonable diligence. (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) When, at the time the plaintiff’s cause of action accrues, the plaintiff is a minor or lacks legal capacity to make decisions, the time of this disability is not part of the time limited for commencing the action. (Code Civ. Proc., § 352, subd. (a); <i>Shalabi v. City of Fontana</i> (2021) 11 Cal.5th 842, 847-848.)

		Claims for invasion of privacy, intentional infliction of emotional distress, and abuse of process are subject to a two-year limitations period. (Code Civ. Proc., § 335.1.) Here, the Complaint alleges that Dillon and Gendreau stole, copied, and disseminated the confidential juvenile report in or about 2013. (Compl., ¶ 23.) It further alleges that Dillon and his attorney produced the report during Dillon’s lawsuit and that Dillon testified during his deposition concerning the report and its dissemination. (Compl., ¶ 24.) The judicially noticed records establish that Dillon filed that action on August 11, 2014, and that it was dismissed on June 5, 2015. (RJN, Exs. 1-2.) Thus, the conduct specifically attributed to Dillon appears to have occurred no later than 2015, more than seven years before Plaintiff filed this action in July 2022. While the Complaint alleges that Plaintiff did not discover the facts giving rise to this action until sometime in August 2021 (Compl., ¶¶ 18, 37), it fails to plead facts that show how she discovered the relevant facts, the circumstances surrounding that discovery, or why she could not have discovered them earlier despite reasonable diligence. Although Plaintiff argues in opposition that she was a minor when the alleged conduct occurred, the Complaint does not clearly allege that Plaintiff was a minor, her age at the time, or when she reached the age of majority. Accordingly, the demurrer on this ground is SUSTAINED with leave to amend. DEFENDANTS WEEKS, GENDREAU & AMENDOLA’S DEMURRER The Complaint alleges that Dillon and Gendreau stole, copied, discussed, and disseminated the confidential juvenile report in or about 2013. (Compl., ¶ 23.) It further alleges that private information from the report appeared in a publicly filed complaint on August 29, 2019, and in the employment action filed by Gendreau and Amendola on January 14, 2020. (Compl., ¶¶ 29–30.) Plaintiff, however, did not file her complaint until July 18, 2022. Although the Complaint alleges that Plaintiff did not discover the facts giving rise to this action until sometime in August 2021 (Compl., ¶¶ 18, 37), it does not allege how she discovered them, the circumstances surrounding her discovery, or why she could not have discovered them earlier despite reasonable diligence. Plaintiff also argues that she was a minor when the alleged conduct occurred, but the Complaint does not clearly allege her age, when she reached the age of majority, or facts permitting the Court to determine the effect of minority tolling. The Complaint does not adequately plead delayed discovery, minority tolling, or another basis for avoiding the apparent limitations bar. Accordingly, the demurrer on this ground is SUSTAINED with leave to amend.
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DEFENDANT HARTY’S DEMURRER

The Complaint alleges that Dillon and Gendreau discussed the report with Harty in connection with events beginning in 2013 and alleges generally that Harty discussed Plaintiff’s private information during and after his employment at GFD. (Compl., ¶¶ 24, 35.) Although the Complaint alleges that Harty testified during a deposition, it does not allege when that deposition occurred, and his deposition testimony is protected by the litigation privilege. (Compl., ¶ 36.)

The Complaint also fails to allege facts adequately supporting delayed discovery or minority tolling for the reasons discussed above. Accordingly, the demurrer to all six causes of action on statute-of-limitations grounds is SUSTAINED with leave to amend.

DEFENDANT HARTY’S MOTION TO STRIKE

Because Harty’s demurrer to the entire Complaint is sustained with leave to amend, his motion to strike is DEEMED MOOT.

DEFENDANT KEVIN IWANAGA’S DEMURRER

The Complaint alleges that Dillon and Gendreau stole, copied, and disseminated the confidential juvenile report in or about 2013. (Compl., ¶ 23.) It alleges that Iwanaga participated in discussions concerning Plaintiff and the report and, on August 29, 2019, filed an employment action containing private information allegedly taken from the report. (Compl., ¶¶ 29, 35.) The two-year limitations period expired before Plaintiff filed this action on July 18, 2022.

The Complaint alleges generally that Iwanaga participated in discussions “during, and subsequent to” his employment and testified during a deposition, but it does not identify the date or recipient of any postemployment disclosure or the date of the deposition. (Compl., ¶¶ 35–36.) His deposition testimony is protected by the litigation privilege, and the remaining allegations do not identify a timely nonprivileged disclosure.

Although the Complaint alleges that Plaintiff did not discover the facts giving rise to this action until August 2021 (Compl., ¶¶ 18, 37), it does not allege how she discovered them, the circumstances surrounding her discovery, or why she could not have discovered them earlier despite reasonable diligence. Nor does the Complaint allege her age or when she reached the age of majority. Plaintiff therefore does not adequately plead delayed discovery or minority tolling.

Accordingly, the demurrer to all six causes of action on statute-of-limitations grounds is SUSTAINED with leave to amend.

		Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Defendants to give notice.
55	Trinh vs. Nguyen 22-01279860	Motion for Summary Judgment and/or Adjudication Defendant Father Nguyen’s motion for summary judgment is DENIED. Plaintiff objects to the Declarations of Cao Lam, Tran Thanh Man, and Defendant Father Nguyen because the declarations are not accompanied by supporting attestations from an interpreter attesting as to the interpreter’s identity, qualifications, and the accuracy of the translations provided by the interpreter. A witness is disqualified if he or she is “[i]ncapable of expressing himself or herself concerning the matter so as to be understood, either directly or through interpretation by one who can understand him.” (Evid. Code § 701(a).) A recent case, <i>Detrick v. Shimada</i> (April 28, 2026) 120 Cal.App.5th 170, is instructive. In <i>Detrick</i>, the Court of Appeal determined that an English-language declaration was inadmissible when it was executed by a party, Shimada, who could not write or speak English and, thus, could not certify under penalty of perjury that the content of her declaration was true and correct as required by Code of Civil Procedure section 2015.5. (<i>Id.</i> at p. 177.) In the reply brief, Shimada’s attorney submitted a declaration stating that Shimada reviewed the declaration with a Japanese-speaking employee and affirmed each statement before signing. (<i>Id.</i>) The Court of Appeal found that insufficient. Shimada’s declaration that the content of her English-language declaration was true and correct was not competent. Without knowing the identity of the translator and their qualifications <i>and</i> without the translator’s attestation that the translation was accurate, the court “still lack[ed] the necessary link providing a foundation for Shimada’s declaration establishing that it is trustworthy in light of her admitted inability to read or speak English.” (<i>Id.</i> at p. 178.) The Declarations of Cao Lam and Tran Thanh Man each state that because the declarant does not speak English, they reviewed the declaration with the assistance of translators so that they could understand the contents before signing it. (Lam Decl. ¶ 13 [ROA 508], Man Decl. ¶ 15 [ROA 514].) Defendant Father Nguyen declares in his Declaration that English is his second language, and although Defendant is conversational in English, he has “difficulty understanding the legalese and technical terms used in the prior and current lawsuits.” (Father Nguyen Decl. ¶ 3 [ROA 522].) Defendant also declares that “because English is [his] second language, [Defendant] reviewed this declaration with the assistance of translators and [his] counsel to understand its contents before signing it.” (<i>Id.</i> at ¶ 104.) Here, as in <i>Detrick</i>, there is an absence of foundational facts from which the court could ascertain whether the English-language declarations of Cao Lam, Tran Thanh Man, and Father Nguyen are accurate. Defendant argues that his declaration is admissible because Defendant can express himself to be understood and is conversational in English with difficulty only with legalese and technical terms. Defendant’s Declaration, however, consists of 104 paragraphs and over 200 pages of exhibits, the majority of which goes beyond conversational English.